

25VECV05815 25VECV05815

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-07-08

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Case Number: 25VECV05815 Hearing Date: July 8, 2026 Dept: U

SUPERIOR COURT OF
THE STATE OF CALIFORNIA

FOR THE COUNTY OF
LOS ANGELES - NORTHWEST DISTRICT

EDWIN JOEL
SANDOVAL, an individual; SALVADOR SANCHEZ, an individual; and ESTEBAN CADRERA
SANDOVAL, an individual,

Plaintiffs,

vs.

ROBERTO CALVILLO, an individual; and
DOES 1-10, inclusive,

Defendants.

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CASE NO: 25VECV05815

[TENTATIVE] RULING RE: DEFENDANT'S
MOTIONS TO COMPEL PLAINTIFFS' INITIAL RESPONSES TO DISCOVERY; MOTIONS TO DEEM
MATTERS IN REQUESTS FOR ADMISSIONS ADMITTED; REQUESTS FOR SANCTIONS

Dept. U

8:30 a.m.

July 8, 2026

I.

BACKGROUND

This case arises from a motor vehicle
accident that occurred on November 13, 2024.

On October 10, 2025, Plaintiffs Edwin
Joel Sandoval, Salvador Sanchez, and Esteban Cadrera Sandoval filed their
complaint against Defendant Roberto Calvillo, alleging: (1) motor vehicle
negligence; and (2) general negligence.

On
December 5, 2025, Defendant filed his answer to the complaint.

Also

on December 5, 2025, Defendant served requests for production of documents (the “RFPs”), form interrogatories (the “FROGs”), special interrogatories (the “SROGs”), and requests for admissions (the “RFAs”) on each of the three (3) plaintiffs. Despite Defendant’s efforts to meet and confer, Plaintiffs failed to initially respond to the RFPs, the FROGs, the SROGs, and the RFAs. (Mullen decl., ¶¶ 2-6.)

On

May 17, 2026, Defendant filed his motions to compel Plaintiffs’ initial responses to the RFPs, the FROGs, and the SROGs. Also on May 17, 2026, Defendant filed his motions to deem matters in the RFAs admitted against Plaintiffs.

As

of 5:00 p.m. on July 7, 2026, no opposition brief(s) had been filed.

II.

LEGAL STANDARD

a. Motion to

Deem Requests for Admission Admitted¿¿

Where there has been no timely response to requests for admissions, the demanding party may seek an order “that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted.” Code Civ. Proc., § 2033.280 (b). The trial court shall grant the motion unless it finds that the party of whom the demand is being made responded to the demand before the motion’s hearing. Code Civ. Proc., § 2033.280 (c).

b. Motion to Compel Initial

Responses to Requests for Production of Documents¿¿¿

Where

there has been no response to a demand to produce documents, the demanding party may seek an order compelling a response.¿ Code Civ. Proc., § 2031.300.

c. Motion to Compel Initial

Responses to Interrogatories¿¿¿

If a party to whom interrogatories are directed fails to serve a timely response, the demanding party may move for an order compelling a response. Code Civ. Proc., § 2030.290.

III.

DISCUSSION

Defendant moves to compel Plaintiffs' initial responses to the RFPs, the FROGs, and the SROGs. Defendant also moves to deem matters in the RFAs admitted against Plaintiffs.

The motions will be granted. Defendant will be awarded sanctions against Plaintiffs jointly and severally in the total amount of \$2,340.00.

a.

The motions will be granted as to the RFPs, the FROGs, and the SROGs.

On December 5, 2025, Defendant served the FROGs, the SROGs, and the RFPs on Plaintiffs. Plaintiffs failed to provide initial responses. As the time for Plaintiffs to respond to the FROGs, the SROGs, and the RFPs has now passed, Defendant is entitled to an order compelling Plaintiffs to respond to the FROGs, the SROGs, and the RFPs, without stating objections. See Code Civ. Proc., §§ 2030.290, 2031.300. The motions will be granted.

b. The motions will be granted as to the RFAs.

On December 5, 2025, Defendant served the RFAs on Plaintiffs. Plaintiffs failed to respond.

The time for Plaintiffs to respond to the RFAs has now passed. Defendant is entitled to orders deeming matters in the RFAs admitted against Plaintiffs. The motions will be granted. See Code Civ. Proc., § 2033.280.

c. Defendant

will be awarded \$2,340.00 in sanctions against Plaintiffs jointly and severally.

The trial court shall impose a monetary sanction when granting a motion to compel initial responses to a request for production of documents or interrogatories, unless the court finds circumstances would make the imposition a sanction unjust. Code Civ. Proc., §§ 2030.290 (c), 2031.300 (c). As to requests for admissions, the trial court has no discretion but to order sanctions when granting a motion to deem admitted. See Code Civ. Proc., § 2033.280 (c).

Here, Defendant has been waiting on Plaintiffs' initial responses to basic discovery for several months. Despite Defendant's efforts to meet and confer, Plaintiffs have not produced initial responses. Plaintiffs filed no opposition brief(s). Defendants are entitled to sanctions.

The Court calculates reasonable attorneys' fees under the lodestar. See *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1096. As to each motion, Defendant requests \$1,140.00, representing 4.0 hours of attorney time at \$270.00/hour, plus the motion's \$60.00 filing fee.

Defendant's request is reasonable as to counsel's \$270.00/hour rate but inflated as to the number of hours billed. Five hours is a reasonable total amount of time for counsel to have spent preparing all twelve (12) motions, which are largely duplicative. Plaintiffs filed no opposition brief(s), and Defendant filed no reply. The lodestar will be adjusted accordingly. Defendant may recover 1.0 additional hour of attorney time for counsel to appear at the hearing on all twelve (12) motions. Defendant may also recover each motion's \$60.00 filing fee.

In sum, Defendant will be awarded attorneys' fees against Plaintiffs jointly and severally in the total amount of \$2,340.00. (6.0 hours x \$270.00/hour + \$60.00 filing fee x 12 = \$2,340.00.)

IV.

CONCLUSION

Defendant Roberto Calvillo's motions to compel Plaintiffs Edwin Joel Sandoval's, Salvador Sanchez's, and Esteban Cadrera Sandoval's initial responses to form interrogatories, special interrogatories, and requests for production of documents are GRANTED. Plaintiffs Edwin Joel Sandoval, Salvador Sanchez, and Esteban Cadrera Sandoval are ORDERED to respond to Defendant Roberto Calvillo's written discovery demands, without stating objections, within twenty (20) days of this order. See Code Civ. Proc., §§ 2030.290, 2031.300.

Defendant Roberto Calvillo's motions for orders deeming matters in requests for admissions admitted against Plaintiffs Edwin Joel Sandoval, Salvador Sanchez, and Esteban Cadrera Sandoval are GRANTED.

Defendant Roberto Calvillo is AWARDED sanctions against Plaintiffs Edwin Joel Sandoval, Salvador Sanchez, and Esteban Cadrera Sandoval jointly and severally in the total amount of \$2,340.00. Sanctions are payable within thirty (30) days.

Defendant Roberto Calvillo is ORDERED to give notice.

DATED: July 8, 2026

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Judge of the
Superior Court